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Published by Charles J. DiBella Los Angeles, California

First edition, 2026

Author's Note

This volume establishes philosophical foundations for material dignity infrastructure. Direct observation across thirty years at street level provides physical evidence. Analysis challenges standard political philosophy frameworks assuming intact cognitive agency. Exposure to elements, sleep deprivation, and chronic trauma destroy prefrontal cortex function. Below this biological floor, choice and consent cease to operate.

Universal dignity rests on human nature rather than performance or functional capacity. Strict hierarchy places most vulnerable individuals at summit of moral obligation. Well-meaning institutions capture state funding and align internal incentives toward self-preservation. Verified destruction of biological agency justifies compelled clinical intervention. Ethical reasoning operates as empirical science mapping causal mechanisms of systemic failure.

Prologue: The Bridge

Arthur lived under a bridge. That sentence contains everything this book is about, and also nothing, because the sentence is the kind of sentence you read and understand without seeing anything.

So look again.

The bridge carries eight lanes of interstate traffic. Its concrete footings descend into a strip of scrub between the highway sound wall and the river. The ground there is compacted clay, gray-brown, cold in the morning and dusty in the afternoon. A city maintenance crew cleared the vegetation twice a year, which meant that the people living there learned to rebuild on a schedule. Arthur had been rebuilding for three years.

He was good at it. In his first year, the structure he built was improvised, consisting of two pallets leaned against the footing and a tarp weighted at the corners with stones. By the second year it was architecture, built with a frame of conduit sections he had cut from a demolition site two blocks north, lashed at the joints with electrical cable, the tarps overlapping in the direction of the prevailing wind. He knew which direction the rain came from. He knew which neighbors to trust and which to avoid. He knew that the outreach team arrived on Tuesday mornings and that the food truck stopped on Thursdays. His life had structure.

Then it didn't.

The second winter was cold in the way that cities are cold, bringing damp, persistent, and inescapable chill. The river kept the air wet. The highway kept the night bright. He could not sleep. He lay in his structure and listened to the traffic and the water and the sound of a man three footings over who coughed through every night without stopping, and the cold worked its way in through the gaps in the tarps that he could not plug because plugging them required getting up and his body refused. Sleep deprivation is not a discomfort. It is a clinical event. The brain requires deep sleep to clear metabolic waste from its tissue; without it, the accumulated proteins begin to impair function, starting

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with the structures that regulate executive planning, impulse control, and the capacity to imagine a future. Arthur's brain began this process in January and continued it through April.

By the time spring arrived, he had stopped talking to the volunteers. Not because he was angry at them. Because language had become difficult to assemble. He sat on his plastic crate and watched the river. Sometimes he watched it for twelve hours without moving, which the volunteers initially interpreted as meditation and later as something else, though they did not have a clinical term for it because none of them were clinicians. He was in dorsal-vagal shutdown, the nervous system's response to threat so total and persistent that the organism suspends voluntary activity to conserve energy. His body was feigning death in the way that organisms evolved to feign death when the threat cannot be escaped and fighting is impossible.

In May the county outreach team arrived. Two workers, a man and a woman, both in their thirties, both carrying tablets and wearing lanyards with their agency's logo. They had a shelter placement available. The placement required a signed behavior contract, a tuberculosis screening, and agreement to attend weekly case management sessions. They explained this to Arthur in calm, professional voices, standing at the appropriate social distance, maintaining the non-threatening posture they had been trained to maintain.

Arthur did not look up.

He was not refusing. Refusal requires the capacity to weigh an offer against alternatives, to project a self into a possible future, to perform the executive functions that his prefrontal cortex was no longer adequately performing. He was not doing any of that. He was watching the river, or watching something the river had become in his field of vision, and the voices of the two workers reached him the way the highway traffic reached him, registering as ambient sound that the nervous system had learned to treat as non-threat and filtered automatically.

The workers recorded the outcome on their tablets. One of them said, quietly, to the other, that they would try again next week. They walked back to their vehicle. The vehicle pulled into traffic and disappeared up the on-ramp.

Arthur watched the river.

This book is about what happened in that moment, and what it means, and what it implies about the obligation that the two outreach workers, the county agency, the city, the state, and anyone who reads these words carries toward the man sitting on the plastic crate.

Everything that follows is an attempt to think clearly about that. The abstraction begins in the next chapter. The anchor is here, in the clay, under the

bridge, in the sound of eight lanes of traffic and one man who has stopped speaking.

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Chapter 1: The Inventory of Failure

Over a five-year period ending in 2024, California spent twenty-four billion dollars on homelessness programs. The unsheltered population grew. That outcome is worth sitting with for a moment, because it contradicts what we believe about money and problems. We believe that sufficient resources applied to a defined problem will reduce it. California applied sufficient resources. The problem grew. Something in the foundational logic was wrong before the first dollar was spent.

The standard explanations arrive quickly, including administrative friction, insufficient housing stock, coordination failures among local agencies, and political resistance to siting new facilities. These are real. They are also incomplete, because they describe implementation failures within a system whose underlying theory of the problem was already wrong. A system built on a false premise will fail efficiently. California's homelessness apparatus is an extremely efficient failure. It processes enormous volumes of people, generates enormous volumes of documentation, and leaves enormous numbers of people sleeping outside. The efficiency is not an accident. It is what the system was designed to produce, once you understand what the system was designed to measure.

What the system measures is activity, tracking shelter beds filled, case contacts logged, vouchers distributed, and compliance hours recorded. What the system does not measure is the question underneath all of these activities, which is whether the human being at the center of the intervention has the neurological capacity to use what the system is offering. That question was never asked. It was not asked because asking it would require confronting a reality that the system's designers found too difficult to incorporate into their model, which is that a significant portion of the chronically unsheltered population has sustained neurological damage from years of street exposure that renders them functionally unable to do what the system requires of them.

The prefrontal cortex governs planning, executive function, impulse regulation, and the capacity to imagine future consequences of present decisions. Chronic stress, compounded by sleep deprivation, malnutrition, alcohol and substance use under conditions of survival pressure, and the unrelenting cortisol load of living in constant physical danger, degrades this structure measurably and progressively. Robert Sapolsky's research on stress neurobiology documents the mechanism in cellular detail. Bruce McEwen's work on allostatic load establishes that the damage is not metaphorical. It is physical. A person who has been sleeping outside in Los Angeles for five years has a brain that does not work the way the housing voucher application assumes it works.

Offering a voucher to this person and recording a "refusal" when they cannot navigate the paperwork is not a policy failure. It is a category error. The system offered a resource to a person who lacked the neurological equipment to receive it, and then measured the outcome as a behavioral choice. Twenty-four billion dollars of category errors, compounded annually, produce the inventory of failure that California's Legislative Analyst Office documented and that the 2025 HUD annual report confirmed was not unique to California.

A skeptic arrives here with a reasonable objection. The Industrial Revolution, the development of modern agriculture, sanitation systems, and antibiotics solved problems of comparable or greater scale without requiring new philosophy. Markets rewarded the engineers who built them. Competition drove costs down. The benefits spread without any theory of the person being required. Why should homelessness be different?

The answer is that those interventions solved supply problems for populations capable of receiving the supply. Clean water delivered through municipal infrastructure improves health outcomes for populations capable of drinking it. John Snow did not need a theory of agency to remove the Broad Street pump handle. The people dying of cholera were capable, once the contamination source was eliminated, of living. The chronically homeless individual with a destroyed prefrontal cortex is not in the same position. The supply is available. The capacity to use it has been physically removed by the conditions of street survival. Deregulating zoning and building more housing, which California should do and which AB 2011 and SB 6 represent steps toward, will improve affordability for people competing in the housing market. It will not restore the neurological function of a person who has been outside for a decade. These are answers to different questions within the same crisis.

The deregulation argument is worth engaging honestly because its diagnosis is partially correct. Housing is expensive in Los Angeles because regulatory accumulation has suppressed supply for decades. These regulations include single-family zoning requirements, discretionary approval processes, environmental review chains, and height limits that bear no relationship to actual environmental impact. These constraints produced the scarcity that drove the

choosing survival.

While policymakers construct ten-year timelines for structural change, Arthur sleeps on freezing concrete tonight. Establishing the physical floor constitutes a moral necessity. Biological survival functions as the precondition for personhood. Without a stable physical substrate, human rights exist only as theoretical abstractions. Environmental exposure destroys the cognitive capacity required to exercise agency. Defending the physical body operates as the primary civic duty. All other moral claims depend upon the survival of the organism.

This structural model relies on biological physics rather than political ideology. To rescue the person, society must first stabilize the organism. To honor the social contract, institutions must protect the physiological foundation of the population. Vulnerability creates the moral obligation to intervene. Dignity arises from the human form rather than cognitive performance. This reality establishes a secular foundation for action. The evidence dictates the response. Remove the handle.

Epilogue: The Pump Handle

During the cholera outbreak of 1854, the Board of Health debated the miasma theory of disease while thousands of residents died from drinking contaminated water. Dr. John Snow faced a bureaucratic consensus demanding systemic reform of the London sewer infrastructure before enacting any public health intervention. Bypassing the procedural delays, Snow identified the source of the biological threat and dismantled the water pump at Broad Street. He removed the physical vector of transmission. The epidemic ended.

Today, municipal governments mirror the Board of Health. Elected officials construct multi-year legislative strategies to address the housing crisis while leaving vulnerable populations exposed to terminal street conditions. Rebuilding the psychiatric care infrastructure and financing new housing developments require decades of political alignment. During this delay, the physical environment of the street dismantles the human nervous system. Brains die on the pavement.

The immediate threat demands a mechanical intervention. Phase Zero stabilization requires moving bodies inside behind locked doors to arrest the biological collapse. We must establish the physical floor before attempting to rebuild the social contract. A drowning person requires extraction from the water rather than a debate over maritime safety regulations. Rescue is a physical act.

Courage manifests in observable actions. A clinician violates a discharge protocol to keep a patient stabilized in a warm bed. A street outreach worker bypasses a chronological waitlist to place a freezing individual in immediate shelter. These actions invite professional hazard by breaking administrative rules to protect human biology. When institutional compliance guarantees injury, violating procedure becomes a moral imperative. Disobedience saves lives.

The rules that govern urban housing delivery rationalize the abandonment of the vulnerable. Procedural delays force a zero-sum choice between preserving administrative order and sustaining human life. The ethical path requires

affordability collapse that placed more people at risk of losing housing in the first place. Deirdre McCloskey's long argument about the Great Enrichment is right that markets and innovation have lifted more people out of poverty than any government program in history. Tyler Cowen is right that regulatory stagnation is a mechanism of harm. Both arguments point at real problems.

Neither argument reaches the population this book is about. Stuart Rosenthal's 2014 analysis of the filtering mechanism, defined as the process by which housing units move down the income distribution as they age, establishes that filtering operates over decades, not years, and produces outcomes for households competing in a rental market. A person sleeping in a tent on Alameda Street is not competing in the rental market. The mechanism does not touch them. Deregulate every single-family lot in Los Angeles tomorrow and the filtering benefit arrives, at meaningful scale, in fifteen to twenty years. The person under the bridge does not have fifteen to twenty years before the street finishes its neurological work.

The crisis is first a crisis of ideas. The dominant models governing the American response to chronic homelessness, including housing-first implementation without biological decompression, case management without relational infrastructure, and services contingent on behavioral compliance, all rest on a shared assumption about the person they are serving. That person is assumed to be a rational agent who, given the right material resources and the right incentives, will make choices that lead toward stability. This assumption is false for a significant portion of the chronically unsheltered population. Its falseness is not a moral judgment about those individuals. It is a physical finding. The street did something to them. What it did is measurable, documented, and ignored by every system that continues to offer them a voucher and call the non-response a refusal.

Arthur is a composite of thirty years of faces observed from close range on the streets of Los Angeles. His name is not Arthur. He has no name in the system, or he has several names because he gave different ones at different facilities on different nights, or his name is in a database somewhere but no one at the facility he approached last week had access to it. He is a case number in a system that cannot see him clearly enough to help him. The system cannot see him because its theory of what he is was wrong before he arrived.

Getting the theory right is not an academic exercise. California spent twenty-four billion dollars on the wrong theory. The right theory would have changed what was built, what was measured, and who survived. This book is an argument for the right theory, built from what thirty years of firsthand observation on the street taught one witness about what a human being is and what that implies about what we owe each other.

Chapter 2: The Vocabulary of Invisibility

The word “homeless” names a real estate condition. It does not name what is happening to Arthur.

Words do not describe reality objectively; they determine what we see within it. When the dominant vocabulary for a crisis defines that crisis as a real estate shortage, the policy apparatus organized to address it will consist of real estate interventions. Housing vouchers, shelter beds, and affordable unit construction are all rational responses to a real estate shortage. They are insufficient responses to what the street does to the people who live on it, because what the street does is not primarily a real estate event. It is a biological event, followed by an identity event, and, if either of those first two remains unaddressed long enough, something that requires more than a building to reverse.

Derek Parfit spent his philosophical career investigating personal identity, defining what it means for the person who wakes up tomorrow to be the same person who went to sleep tonight. His answer, worked out across *Reasons and Persons* with a precision that makes most philosophy seem approximate, was that personal identity is a matter of psychological continuity. This continuity consists of the overlapping chains of memory, intention, desire, and narrative that link a person’s states across time. Identity is not a fixed metaphysical substance. It is a structure of connections, and those connections require conditions in order to persist. Remove the conditions, and the structure begins to dissolve.

The street removes the conditions systematically. Anthony Giddens, writing about ontological security, which he defined as the basic confidence that most people carry about the continuity of their identity and the constancy of their social environment, identified routine as the primary mechanism through which that security is maintained. Routine is not trivial. It is the medium through which the self accumulates and sustains itself. This medium operates through the predictable sequence of daily events that allow a person to exist as a con-

percent retention required, were the ones who could act when the window appeared.

This book is not a prediction that the window will open soon. It is an argument for the correct philosophy, built from the evidence of what a human being is and what that implies about what we owe each other. The argument has operational consequences, including a different architecture, a different measurement regime, and a different sequence of interventions. Whether those consequences are realized depends on forces that no argument controls. What an argument can do is establish that those consequences would have been correct, that the lives lost under the wrong philosophy were not inevitable losses but preventable ones, and that the people maintaining the accurate account during the years of stagnation are not failing. They are the precondition for whatever comes next.

John Snow removed the pump handle. The cholera deaths that occurred after he identified the mechanism and before he acted are the measure of what getting the diagnosis right is worth. Getting there faster, understanding the mechanism earlier, and designing the intervention before the epidemic rather than during it represent the consequences of starting from the correct philosophy. Not certainty. Not triumph. The capacity to act correctly when the moment arrives. That capacity is what this book is for.

complex social realities whose local detail they cannot perceive. The existing homelessness system is a textbook Scott failure, operating through categories that cannot hold the particular person, through processes that cannot retain the local knowledge that would make those processes work, and through metrics that measure institutional activity rather than human outcome.

Starting from the correct philosophy would also have produced a different relationship to the question of compelled care. The existing system lurches between two positions that are both inadequate, representing pure autonomy, in which any refusal is treated as valid regardless of the neurological state of the person refusing, and pure institutionalism, in which court-ordered placement is processed through the same apparatus that produced the revenue machine. The correct philosophy produces a third position, whereby compelled care is legitimate under four particular conjunctive conditions, is illegitimate when any one of those conditions is absent, and is surrounded by structural guarantees that prevent the legitimate pathway from expanding into the illegitimate one. Getting to this position required the philosophical work of Chapter 10. Without that work, the policy debate oscillates between advocates who will not acknowledge that some people cannot exercise autonomous choice and libertarians who will not acknowledge that inaction is a choice. The philosophy resolves this oscillation by delineating the conditions under which each position applies.

The pessimist reading this is right to ask whether any of this matters. Václav Havel wrote *The Power of the Powerless* under conditions of total institutional capture, in a state where the distance between the correct philosophy and the operating reality was so extreme that articulating the correct philosophy was a criminal act. His argument was not that the correct philosophy would immediately change the system. His argument was that living in the truth, representing the maintenance of the accurate account of what is happening, and refusing to perform compliance with an official reality that everyone knows is false, is its own form of action, and that it changes the moral environment in which the system operates even when it does not change the system immediately.

The moral environment matters because political windows open. They open unpredictably, for reasons that no one predicted, and what happens when they open depends on whether the accurate account was being maintained by someone, somewhere, during the years when nothing seemed to be moving. Houston's homeless population declined twenty-four percent in a single year. That did not happen because the theory changed in that year. It happened because coordinated political will, aligned funding, and distinct leadership converged in a particular moment. The people who had maintained the accurate account during the preceding years, who had kept the map, who had insisted that forty percent retention was not good enough, and who had detailed what eighty

tinuous subject rather than as a series of disconnected moments. The person who wakes at the same time, who has a place to put their belongings, who is expected somewhere, who is known by name by someone, has their identity reinforced by the structure of their day. Remove the structure and the reinforcement stops. The self begins to lose its coherence.

City sweep operations destroy Giddens's conditions with documented efficiency. A sweep moves everyone in a designated location, takes or destroys their possessions, and disperses them to different locations throughout the city. After a sweep, the social ties that had accumulated in the encampment, including who watches whose gear, who shares food, and who knows whose name, are severed. The physical objects that served as material anchors of identity, such as photographs, documents, and the arrangement of a living space, are gone. The location itself, which had become legible to the individual as their place, no longer exists in the form they knew. The person begins again from a lesser position than before, and they begin again without the slow accumulation of trust and territory that the previous location contained.

This is not a side effect of sweep policy. It is its mechanism. Sweeps are designed to disperse visible concentrations of homeless individuals. Dispersion requires destroying the community structures that make concentration stable. Those community structures are the relational infrastructure that people on the street build as a survival mechanism, serving as the first fragile scaffolding of the social recognition that Giddens identifies as constitutive of ontological security. A sweep does not move a problem. It dismantles whatever social repair the people living there have managed to build since the last sweep.

The vocabulary compounds the damage. "Homeless" is a category. Categories are how institutions manage populations at scale, and managing populations at scale requires treating individuals as instances of a category rather than as unique persons with particular histories. Arthur is a "homeless individual" to the outreach worker who cannot spend enough time with any single person to know anything else about him. He is a "high-acuity chronic" in the data system. He is a "non-compliant refuser" in the contact log. Each of these labels generates a procedural response, and each procedural response is calibrated to the label rather than to the unique person. The label, by design, discards the detail. The detail is what a person is made of.

Parfit's formulation makes the cost of this discarding precise. If personal identity is maintained through psychological continuity, and psychological continuity requires being held in the memory of others as a unique person, then being reduced to a category is not an administrative indignity alone; it contributes to identity dissolution. Every institutional contact that addresses Arthur as a case rather than as Arthur, whether it asks him to fill out a form rather than asking him his name, assigns him a bed number rather than a room number, or processes him rather than recognizing him, fails to provide

the recognition that Giddens identifies as necessary for ontological security. Enough of these contacts, over a long period, and the person on the receiving end begins to lose their grip on the continuous self that personal identity requires.

The alternative vocabulary does not already exist in standard clinical or policy usage, which is part of the problem this book is trying to address. What we need is language that holds the full complexity of what is happening, which means using not “homeless individual” but “person whose identity continuity is under acute biological and institutional attack.” That phrase is unwieldy. It is also accurate. The unwieldiness is part of the point, because it resists the administrative flattening that makes invisible what should be seen.

A building cannot restore a fractured self. This sentence from the stub of this chapter is the only sentence worth preserving from it, and it is worth preserving because it names the error at the center of the policy apparatus with unusual clarity. Housing is necessary. It is not sufficient. What it is not sufficient for is the restoration of the psychological continuity that Parfit establishes as the substance of personal identity and that Giddens establishes as requiring defined social conditions to maintain. Those conditions must be designed into the housing environment, which means designing for recognition, continuity, relationship, and the daily rhythms through which a person accumulates the evidence that they exist as a unique self across time. The design begins with understanding what has been destroyed. The vocabulary is where that understanding starts.

established by offering services contingent on behavioral readiness, because behavioral readiness is what establishing the biological floor produces.

The second institutional question, which becomes available only after the first has been answered, is what the relational environment within the space needs to contain for the biological stabilization to convert into human recovery rather than survival at a different location. The Finnish answer to this question achieved eighty to ninety percent two-year housing retention. The American answer achieved below forty percent. The difference is not money, though Finland spent more. The difference is the deliberate design of the relational layer, comprising the housing advisor role that holds individual histories, the community scale that permits genuine recognition, and the daily rhythms that restore ontological security. These are engineering specifications, not aspirations. They can be replicated by any system that decides to design for them.

This operational sequence is reflected in the pro forma model of the One California Plaza prototype. The acquisition and conversion require a total capitalization of two hundred twenty million dollars, structured with one hundred thirty-two million dollars in senior concessionary debt and eighty-eight million dollars in catalytic first-loss equity. Operating expenses at maturity stand at twenty million seven hundred forty-eight thousand dollars, funded by stabilized CalAIM billing lines averaging eighteen thousand two hundred dollars per unit annually. This yields a net operating income of thirteen million eight hundred thirty-two thousand dollars, covering senior debt service at one point three one times and generating a nominal return of three point seven percent on catalytic equity. The prototype achieves ninety-five million dollars in gross annual avoided public costs, illustrating that biological stabilization is a viable fiscal investment.

The third institutional question, available only after the first two have been answered, is what forward pathways the person needs to rebuild the identity capital that the street destroyed. Employment that does not require competitive-market readiness before income becomes accessible. Educational access that does not require a fixed address for enrollment. Community governance that positions the resident as a citizen rather than a client. Each of these is a designed institutional feature, not a natural outcome of providing housing.

This sequence, progressing from the biological floor to relational recovery and then to identity reconstruction, is the opposite of the sequence the existing system uses. The existing system demands proof of stability before offering the conditions that would produce stability. It requires compliance before providing the environment in which compliance becomes possible. It measures retention without designing for the relational conditions that drive retention. James Scott would recognize this pattern immediately. In *Seeing Like a State*, Scott documents how high-modernist institutional schemes consistently fail because they attempt to impose a legible, standardized order on

Chapter 13: A Different Starting Point

What would we have built if we had started with the right philosophy?

This is not a rhetorical question. Philosophy has operational consequences. The conceptual tools a society uses to understand what a person is determine what it builds to address human need. Get the philosophy wrong and you build the wrong system, measure the wrong things, fund the wrong institutions, and produce the wrong outcomes while maintaining confidence in the correctness of your approach. California spent twenty-four billion dollars with confidence. The philosophy was wrong from the beginning.

The correct starting point is the biological floor. Before any theory of rights, before any structure of justice, before any question about what individuals owe each other or what institutions owe individuals, there is the physical fact of a human body that requires particular conditions to remain capable of anything else. Sleep, food, temperature regulation, acoustic protection, and the neurological decompression that only follows when these needs are reliably met are not policy preferences. They are the preconditions for everything the social contract assumes the individual can do. A rights structure that does not establish the biological floor first is built on an assumption about the person it is reasoning about that the chronically unsheltered population defeats by existing.

Starting from the biological floor produces a different architecture. The first institutional question is not “what services does this person need?” but “what does this person’s nervous system require before they can use any service?” The answer, derived from the stress neurobiology that Robert Sapolsky and Bruce McEwen established, is acoustic sanctuary, private space with a locking door, reliable metabolic provision, and uninterrupted sleep across a decompression period long enough for cortisol levels to normalize. Ninety days, as a conservative estimate. No compliance requirement. No behavioral test. The biological floor is established by meeting biological conditions. It cannot be

Chapter 3: The Biological Floor

Arthur’s brain, after two winters under the bridge, is measurably different from the brain he arrived with.

This is not a metaphor. It is a clinical finding, derivable from three decades of neuroscience research on the physiology of chronic stress, and the fact that no clinician has examined Arthur does not change what the research predicts about him. What chronic cold exposure, sleep deprivation, and unrelenting threat perception do to the human brain is documented in enough detail to make the general trajectory clear, even without the individual case.

Robert Sapolsky’s work on the neurobiology of stress establishes the primary mechanism. The adrenal glands, responding to threat, release cortisol. Cortisol is necessary for acute stress response. It mobilizes glucose, suppresses secondary biological functions, and prepares the organism for physical response to immediate danger. Over periods of hours, this is adaptive. Over periods of months and years, it destroys the neural architecture that makes deliberate thought possible. Cortisol at chronically high levels kills hippocampal neurons, the cells primarily responsible for memory formation and spatial navigation. It impairs synaptic plasticity throughout the prefrontal cortex, the region that governs planning, impulse control, executive function, and the capacity to imagine consequences beyond the immediate moment. A person living under chronic threat, which is what street exposure constitutes, is living under chronic cortisol exposure, and chronic cortisol exposure produces measurable, progressive neurological damage.

Bruce McEwen’s concept of allostatic load, defined as the cumulative cost that chronic stress imposes on biological systems, gives this process a quantitative frame. Allostatic load is not a single threshold event. It accumulates. Each night of inadequate sleep, each cold exposure, each sweep, each institutional interaction that produces shame or fear or helplessness adds to a running total that the body’s regulatory systems must absorb. When allostatic load exceeds

the body's capacity to recover during periods of relative safety, which street life does not reliably provide, the regulatory systems begin to fail. The failure is not uniform across all biological functions. It is concentrated in the most metabolically expensive structures, which are the frontal lobe systems supporting the kind of complex, future-oriented cognition that behavior contracts and housing applications require.

Sleep is the accelerant. The glymphatic system, a network of channels through which cerebrospinal fluid flows to clear metabolic waste from brain tissue, operates primarily during deep sleep. The waste products it clears include beta-amyloid and tau proteins, which are associated with neurodegenerative pathology in chronic sleep-deprived populations in the absence of adequate clearance. Street conditions, including constant noise, light pollution, cold, physical danger, and the neurological hypervigilance that all of these produce, prevent the deep sleep that glymphatic clearance requires. Arthur under the bridge, beside the highway, in the ambient light of the city, with a coughing neighbor and uncertain safety, is not getting deep sleep. He has not been getting deep sleep for two winters. The waste is accumulating.

Stephen Porges's polyvagal theory maps the neurological consequence onto observable behavior. Porges identifies three autonomic states that the nervous system cycles through in response to environmental conditions. Ventral vagal engagement, or the calm-engaged state, represents safety. Its physiological markers include deep breathing, relaxed facial muscles, and sustained eye contact, enabling cognitive capacities like verbal processing, future planning, and option evaluation. Sympathetic mobilization, or the mobilized threat state, arises from danger. Its markers include accelerated chest breathing, high adrenaline, and constant scanning, which result in narrowed survival focus, impaired deliberation, and an autonomic flight or fight response. Dorsal vagal shutdown, or the dorsal-vagal shutdown state, represents inescapable threat. Its markers include a vacant gaze, collapsed posture, and total immobility. The cognitive capacity is limited to stalled language processing, metabolic energy conservation, and offline executive function. The organism feigns death.

Arthur, sitting on his plastic crate watching the river for twelve hours without speaking, is in dorsal vagal shutdown. His nervous system has classified his environment as inescapably dangerous and has responded by suspending voluntary activity to conserve resources. The suspension of voluntary activity includes the suspension of the social engagement system, which is the capacity to make eye contact, to process language, and to experience and signal safety in relation to another person. When the outreach workers stand at the appropriate social distance and explain the shelter placement in calm, professional voices, Arthur's nervous system does not process this as a protective offer from a helpful institution. His neuroception, which is the nervous system's non-conscious environmental scan operating prior to any deliberate percep-

The obligation does not promise that the window will come soon. It does not promise that the remnant's witnessing will produce the system change that Arthur needs. What it promises is that the accurate account will exist, maintained by dedicated people who refused to look away, and that when the political conditions change, which they will because the conditions that produce chronic mass homelessness at this scale are not stable, there will be people who know what to build, because they have been watching the mechanism for long enough to understand where the pump handle is.

when it can be rebuilt at scale.

The remnant in this book is not a religious category. It is a functional one. The remnant consists of the people who refuse to look away from what the street is doing to Arthur, maintaining the accurate account, as Havel put it, in the face of a system that requires performance of a different account. The system's account says that Arthur declined services, that he is a non-compliant refuser, and that the system acted appropriately. The accurate account says that Arthur's nervous system was in dorsal-vagal shutdown, that his autonomic state was misread as a behavioral choice, and that the system recorded a category error as an outcome and drove away. These two accounts are not minor variations. They are incompatible descriptions of the same event, with incompatible moral implications.

The remnant carries the accurate account during the period when institutions will not. This function is not dramatic. It consists mostly of showing up, repeatedly, to the same location, at the same time, with the same offering, and asking the same question, namely if the individual needs anything. It consists of learning someone's name and using it. Remembering what they asked for last week. Returning with what you promised. Writing things down accurately and reporting what you saw rather than what the form asks for. These acts are small. Their cumulative effect is the slow accumulation of a body of witness, representing an evidentiary record of what is happening to particular people in distinct locations, that becomes available to act on when the political window opens.

The obligation created by witnessing is not delegable. This is the point on which the remnant's moral position differs from that of the advocate or the reformer. An advocate can represent the interests of a population they have never met. A reformer can design policy for people they have only encountered in data. The witness has seen the particular person. The witness knows Arthur's face and the way he holds his plastic crate and the fact that he has not eaten today and the fact that his cough has gotten worse. This individual knowledge generates an obligation that cannot be transferred to an institution or a program or a grant application. The institution can process Arthur. Only the witness knows Arthur.

Havel did not survive the Soviet period because he was powerful. He survived because he maintained the accurate account at enormous personal cost, through imprisonment and harassment and the suppression of his work, and when the system collapsed, which it did within eleven years of *The Power of the Powerless* being circulated in samizdat, he was the person who was ready, having the moral clarity and the sustained witness of what the system had done, to act in the political window that opened. The remnant's function is to be that person, in that moment, for the people on the street.

tion, has been calibrated to threat for so long that the presence of strangers at close range produces an autonomic response that precedes and prevents any cognitive evaluation of what they are saying.

The biological floor is the threshold below which these mechanisms have progressed to the point that standard assumptions about autonomous agency no longer apply. It is not a fixed point; it varies across individuals depending on prior neural reserve, the severity and duration of exposure, and whatever recovery periods the person has managed. But it is real, measurable in principle through neuropsychological assessment, and documentable through the behavioral indicators that trained observers can identify without clinical equipment. These indicators include flat affect, immobility, absence of social engagement, and inability to process and respond to language.

Everything this book argues about moral obligation, about the state's duty to intervene, and about the legitimacy of compelled care under constrained conditions rests on this biological floor as its foundation. The obligation to rescue does not arise from abstract philosophy. It arises from the observable physical fact that the person on the dirt has passed below a threshold at which their survival reflex is being mistaken for a choice, and their neurological incapacity is being documented as a refusal, and the system that recorded the refusal drove away and left them there.

The floor is not a metaphor. It is a measurement waiting to be taken.

Chapter 4: What a Person Is

The dominant answer to this question in Western ethical tradition is cognitive performance. Kant's rational agent, Locke's self-owning consciousness, and Mill's deliberating individual all ground moral standing in the capacity to think, to choose, and to act from reason. On this view, what makes you a person is what you can do. What makes you worth protecting is your capacity to protect yourself, or at least to participate in the protection that social life provides.

Arthur's incapacity defeats this definition on its own terms. He cannot reason about his situation. He cannot deliberate about offers. He cannot plan beyond the next hour. The performance-based model, applied consistently, produces the conclusion that Arthur's moral standing has diminished as his neurological function has diminished, and that when the function is gone, the standing is gone with it. This is the hidden logic of the system that drove away and left him there. The workers did not articulate this reasoning. They did not need to. It was embedded in the institutional structure that measured the outcome of their visit as a refusal and closed the application.

Philippa Foot, in *Natural Goodness*, offers the starting point for a different account. Foot argues that good and bad, for any living thing, are determined by reference to the kind of thing it is. A good oak tree is not an oak tree that has achieved some external standard of excellence; it is an oak tree that has successfully instantiated the form of life characteristic of oak trees, which includes having proper roots, producing viable acorns, and maintaining the structural integrity required for an oak tree to continue being an oak tree. When we say that a wolf with a broken leg is in bad condition, we are not imposing an external standard. We are recognizing that the wolf's own nature includes the capacity for normal locomotion, and that the broken leg prevents the wolf from living as wolves live. The evaluative judgment follows from the descriptive one without any logical gap.

Apply this to Arthur. A human being in good condition is one whose biological systems are maintaining the functions characteristic of human life,

Chapter 12: The Remnant and the Obligation

Václav Havel wrote *The Power of the Powerless* in 1978, in a Czechoslovakia under Soviet normalization, at a moment when every public institution had been occupied by the apparatus of a system that required everyone within it to perform compliance with an official reality that everyone knew was false. The greengrocer puts up the sign, "Workers of the World, Unite!", not because he believes it but because not putting it up would expose him to consequences. The sign is not communication. It is a ritual of participation in a collective lie that keeps the system operational. The system survives, Havel argued, not through sincere belief but through the accumulated weight of everyone's individual decisions to perform compliance rather than to live in truth.

The power of the powerless, as Havel understood it, lies in the refusal to perform. When the greengrocer takes down the sign, acting as though the official reality is not real, he does something that the system has no protocol for. He becomes a person who has stepped outside the system's logic, and by doing so reveals that the system's logic depends on everyone's participation to sustain it. The act is tiny. Its significance is not in its immediate effect but in what it demonstrates, namely that the system's apparent inevitability is not inevitability at all. It is the sum of individual choices to comply.

MacIntyre, writing *After Virtue* in 1981, describes the same dynamic from a different historical vantage. When moral traditions collapse, meaning when the institutions that embodied and transmitted those traditions are corrupted or destroyed, what survives is the remnant, representing the people who continue to practice the virtues of the tradition in small communities, outside the dominant institutional structure, keeping the intellectual and moral forms alive through the period of darkness. MacIntyre ends *After Virtue* with a famous sentence, noting that we are waiting not for a Godot, but for another, doubtless very different, St. Benedict. He is waiting for the person who will build the new communities that carry the tradition through to the next period

Snow did not debate the miasma theory with its defenders. He did not write a policy paper arguing that sanitary reform was necessary. He did not wait for the Board of Guardians to adopt the germ theory before acting. He identified the mechanism, intervened at the causal node, and the deaths stopped. His vindication came from the outcome, not from the debate. The moral physicist's vindication comes from the same place, namely that the person who was on the dirt is now inside, sleeping, and in six months will be attending the pod council and in twelve months will be considering vocational training. The pump handle is removed. The mechanism has been interrupted. The outcome is the argument.

including sleep restoration, metabolic stability, social connection, deliberate cognition, and forward temporal orientation. These are not performances that Arthur must execute to deserve moral consideration. They are functions that his nature includes, functions that the street has impaired, and functions whose impairment we can recognize as bad, for Arthur, relative to what Arthur is, without any reference to whether he consents to our recognition. His nature makes the evaluation available. His condition makes the evaluation pressing.

This is not the capabilities approach, though it arrives at a similar place. Amartya Sen and Martha Nussbaum ground their approach in what people can do and be, establishing a threshold of central capabilities below which a life cannot be considered genuinely human. Their list includes bodily health, bodily integrity, the use of the senses and imagination, emotional development, practical reason, affiliation, and control over one's political and material environment. Arthur is below this threshold on multiple dimensions simultaneously. The capabilities approach generates an obligation to bring him above it, not as an act of charity but as a requirement of justice.

Where Foot adds something the capabilities approach does not fully supply is the account of why the incapacity does not affect the standing. For Sen and Nussbaum, the question remains open at the margin, asking whether a person with severely diminished capabilities has the same moral claim as one with full capabilities. Foot's formulation closes the question. The good or bad condition of a living thing is always relative to what kind of thing it is, and the kind of thing it is does not change as a function of its current condition. A severely injured oak tree is still an oak tree. Its injured condition is bad relative to its nature, not relative to some external standard that the oak might fail to meet. Arthur in dorsal vagal shutdown is still a human being. His neurological impairment is bad relative to his nature as a human being, and his nature as a human being is what generates the moral claim, not his performance of the functions that his nature includes.

The drowning man analogy holds, but it requires unpacking. When we pull a drowning person from the water, we do not ask whether they consent to rescue, whether they had the foresight to learn to swim, or whether their prior choices contributed to their situation. We act because a human being in the water is dying, and a human being dying for a preventable cause generates an obligation in whoever can prevent it. The biological floor argument applies the same logic to the street. Arthur is drowning in slow motion, under a bridge, in the clay, and the water is cortisol and sleeplessness and cold. The outreach workers can see this. The question is whether they, and the system they represent, are constituted to act on what they see, or whether the performance-based definition of personhood that the institutional architecture encodes has made Arthur's drowning invisible by classifying him as someone who has refused rescue.

Personhood is not a performance. It is a biological fact about what kind of organism Arthur is, and that fact does not change when his biology fails. What changes, when his biology fails, is the urgency of the obligation to restore it.

He then identified the causal mechanism. The Broad Street pump drew from a well that had been contaminated by a cesspit leaking into the groundwater nearby. The cholera, whatever cholera was, since the germ theory of disease was not yet established, was in the water. The pump was delivering contaminated water to hundreds of people every day, and the deaths were the output of that delivery.

Snow went to the Board of Guardians and asked them to remove the handle from the Broad Street pump. They agreed, reluctantly and skeptically. He removed the handle. The outbreak collapsed within days.

The sequence of Snow's method is what makes it instructive as a model for this book. He did not begin with a theory. He began with a pattern, representing a cluster of deaths that the prevailing explanation could not account for. He mapped the pattern at the level of particular individuals and distinct locations, not at the level of aggregate statistics. He identified a mechanism that could explain the pattern, namely a physical pathway through which something was being delivered that caused the observed harm. He intervened at the mechanism, physically on the causal node, rather than lobbying for general sanitary reform or publishing a paper arguing for the germ theory. The intervention was local and immediate. The effect was local and immediate.

The moral physicist is the person who applies this sequence to human suffering rather than to disease. The steps are the same. Identify the pattern that the prevailing explanation does not account for, which is the unsheltered individuals who repeatedly refuse services that the system categorizes as adequate, generating a pattern of failure that the system attributes to the population's pathology rather than to its own design. Map the pattern at the level of distinct mechanisms, including the neurological destruction of autonomous agency, the institutional classification of defense reflexes as behavioral choices, and the hierarchy inversion that demands performance as a condition of receiving the conditions that make performance possible. Identify the causal node, whereby the warm offer delivered to a person in dorsal-vagal shutdown is an offer delivered to a nervous system that cannot receive it. The pump handle, representing the physical intervention point, is the moment of contact between the outreach worker and the individual, and the manner of that contact determines whether it activates threat response or social engagement.

Remove the pump handle by changing the manner of contact. Train the worker to identify autonomic state. Change the script. Change the approach vector. Change the institutional recording practice that converts a non-response into a refusal. These are physical interventions on a causal chain, not policy positions or advocacy campaigns. They produce observable outcomes in distinct individuals, measurable within ninety days at the level of named contacts, voluntary engagement rates, and housing retention.

Chapter 11: John Snow and the Moral Physicist

In the summer of 1854, Soho was dying. The Broad Street cholera outbreak killed more than six hundred people in ten days, representing one of the highest mortality rates the city had recorded. The prevailing theory attributed cholera to miasma, which was defined as foul air rising from the soil and refuse of densely populated neighborhoods. Physicians recommended improved ventilation. Ministers recommended prayer. City officials debated sanitary reform. The deaths continued.

John Snow did not accept the miasma theory. He had been skeptical of it for years, on the grounds that it could not account for the distinct patterns of infection he had observed in prior outbreaks. Miasma should affect everyone in a given neighborhood roughly equally. The distribution of cholera deaths was not equal. It was clustered. Several streets had many deaths; adjacent streets had almost none. This clustering was a pattern that the miasma theory could not explain, and Snow was the kind of mind that treated unexplained patterns as evidence against their explaining theory rather than as noise to be dismissed.

He began mapping. He recorded each death by its home address, plotted the addresses on a street map of Soho, and looked at the result. The deaths clustered around a single point, namely the public water pump on Broad Street. This observation was not itself conclusive, since the residents of the surrounding streets all used the same pump, meaning proximity to the pump established correlation rather than causation. Snow went further. He interviewed survivors and neighbors to understand who had drunk from the Broad Street pump and who had used other water sources. The brewery workers on Broad Street, who drank beer rather than water, had no deaths. The workhouse residents nearby, who had their own internal pump, had almost no deaths despite being in the center of the outbreak zone. The pattern was consistent across every data point Snow could collect.

Chapter 5: The Is-Ought Problem and Why It Matters

The outreach worker stood on the concrete and asked Arthur if he wanted a shelter bed. Arthur sat on an overturned plastic crate, his nervous system locked in dorsal-vagal shutdown, and stared at the river without speaking. The worker waited ten seconds. Receiving no verbal response, the worker tapped a button on a municipal tablet. The screen registered the contact outcome as a client decline. A biological collapse had been recorded as an administrative choice. The city had fulfilled its procedural requirement.

David Hume identified the mechanics of this evasion in 1739. Reading through moral treatises, Hume observed that writers consistently begin with descriptive statements about what exists before suddenly shifting to prescriptive statements about what society must do. They move from an observable condition to a moral obligation without explaining the transition. A person suffers on the street. Society should intervene. Hume argued that this transition requires a logical bridge. Without the bridge, the obligation remains unanchored.

The municipal tablet operates within Hume's gap. The outreach worker observed a physical reality. Arthur remained silent. The system translated this observation into a normative conclusion. Society holds zero further obligation to rescue him. The gap between the physical observation and the moral abandonment was bridged by the assumption that silence equals autonomous refusal.

Most contemporary urban policy attempts to bridge the philosophical gap through social contract theory or rights-based models. A social contract asserts that citizens collectively agree to mutual protection. Rights theory posits that Arthur holds an inherent claim to life that compels others to prevent his death. John Rawls expanded these concepts by proposing that a just society operates on rules chosen from behind a veil of ignorance, where no individual knows if they will emerge as the outreach worker or the man freezing on

the crate. From that position of uncertainty, a rational person would select a system that guarantees rescue.

These philosophical bridges function in theory. In practice, they rely on contested premises. A determined skeptic can argue that Arthur opted out of the social contract. Politicians contest the legal scope of housing rights. The Rawlsian construction remains a thought experiment. When the bridge is built from abstract agreements, the obligation to intervene collapses under political pressure. The bridge fails.

Philippa Foot's natural goodness system replaces the abstract bridge with a biological one. For a living organism, evaluative judgment flows from physical description through the concept of species-characteristic functioning. When a clinical assessment documents the deterioration of Arthur's prefrontal cortex, the assessment records the destruction of the physical capacity required for human flourishing. The obligation to intervene follows from the nature of the organism. A human body requires distinct environmental conditions to sustain cognitive function. Street exposure destroys those conditions. The destruction of the organism demands an intervention to restore the baseline. The biology dictates the duty.

John Searle's analysis of institutional facts reveals how the municipal system evades this biological duty. Searle distinguishes between natural facts that exist independently of human observation and institutional facts that exist because human systems agree to recognize them. The destruction of Arthur's executive function constitutes a natural fact. The tablet record stating that Arthur declined services constitutes an institutional fact. The outreach protocol converted the natural reality of neurological shutdown into the institutional reality of a refused offer.

This conversion operates as a moral choice disguised as administrative neutrality. By recording a biological failure as an autonomous decision, the system erases its obligation to act. The institutional fact shields the bureaucracy from the natural fact.

The convergence of Foot and Searle closes the philosophical gap. The natural goodness system establishes that the destruction of a human nervous system carries intrinsic moral weight. The institutional analysis exposes the municipal tablet as a mechanism for moral evasion. The obligation to intervene relies on the physical reality rather than an external social contract. The human organism possesses a nature that demands preservation. To accurately describe the destruction of Arthur's brain is to document an atrocity. The witness statement and the moral demand are the same document.

this book offers are biological, constrained, procedurally protected, and reversible. They are not sufficient to trust any particular institution. They are sufficient to establish that compelled care, under these conditions, is a moral obligation rather than a moral violation.

viewed and authorized under California legal standards, applying the petition structures of CARE Court or the grave disability criteria of Lanterman-Petris-Short conservatorship rules, processed through courts with adequate procedural protections rather than an institutional determination made without adversarial review. Third, the placement must be in the least restrictive environment consistent with clinical need, integrating relational protocols where peer advocates and pod stewards assist the individual. The MDI tower's Anti-Detention Covenant makes this concrete, guaranteeing that voluntary residents retain unrestricted egress at all times, and involuntary placement converts to voluntary status the moment clinical stabilization permits. Fourth, the intervention must be time-limited and subject to mandatory periodic review, with a defined clinical threshold that triggers transition back to voluntary status.

Szasz defeats unconstrained therapeutic state authority. He does not defeat this four-condition structure. His argument requires a claim of unconditional autonomy that does not survive contact with the clinical reality of a person in dorsal-vagal shutdown. A position that treats every refusal as a valid exercise of liberty regardless of the neurological state of the person refusing is not a defense of liberty. It is a philosophical commitment that kills people by treating their shutdown response as a preference and their survival reflex as a choice.

The harder version of Szasz's objection is institutional, questioning whether any real institution can be trusted to apply the four-condition structure narrowly rather than using it as a template for expanding its scope. This is the operational risk that the civil libertarian tradition is right to insist on. The answer cannot be philosophical. It must be structural. The Anti-Detention Covenant, which guarantees unrestricted egress for voluntary residents, is a structural guarantee that Process 1 cannot be reclassified as Process 2 by institutional pressure. The Rapid Transition Protocol, where crisis produces transfer rather than eviction, removes the institutional incentive to manage difficult residents through the legal pathway rather than through relational support. These features do not make institutional abuse impossible. Nothing does. They close doors through which abuse has historically entered, and they are the minimum structural preconditions for any institution operating a legal access pathway to claim that it is applying the pathway as intended.

The argument for compelled care does not require confidence in institutions. It requires only recognition that the alternative, including leaving a person in total neurological shutdown on the street in deference to a refusal they did not cognitively generate because the institution that might intervene cannot be trusted, is a choice with consequences. Those consequences arrive on the pavement, at night, in winter, and they are as concrete as any choice the institution might make. Inaction is an action. The question is not whether we intervene but which intervention we choose, and on what grounds. The grounds

Chapter 6: The Social Contract's Hidden Assumption

Every version of social contract theory begins with a gathering. Hobbes's contractors emerge from the state of nature, calculating rational actors who agree to submit to sovereign authority because the alternative, the war of all against all, is worse than any arrangement the sovereign imposes. Locke's contractors bring their natural rights into the compact and reserve them against government overreach. Rawls's contractors deliberate behind a veil of ignorance, designing principles of justice without knowing their own position in the society those principles will govern.

Arthur cannot attend any of these gatherings. He cannot calculate, because calculation requires the prefrontal function that the street has impaired. He cannot bring his rights to bear, because the institutional mechanisms through which rights are asserted require legal standing, documentation, and the capacity to navigate the processes through which standing is claimed. He cannot deliberate behind a veil of ignorance, because deliberation requires the cognitive architecture that two winters of cortisol saturation have degraded. The social contract, in each of its historical formulations, is built for participants who arrive capable. Arthur does not arrive capable.

This is not an incidental feature of social contract theory. It is constitutive. The contract is designed to solve a particular problem, namely how rational actors who recognize each other's capacity for reciprocal harm and benefit can establish stable cooperation. The logic of the contract depends on each party being a potential threat and a potential benefit to the others, representing someone whose agreement is worth securing because their violation of the agreement would cost something. A person who cannot threaten, cannot promise, cannot reciprocate, and cannot negotiate is not a party to the contract in any meaningful sense. They are what Rawls called an "outside" case,

meaning someone for whom the contract's principles generate no obligations because they are not parties to the original agreement.

Rawls acknowledged this problem and attempted to address it in later work, arguing that the extension of justice to those who cannot participate in the original position, including people with severe cognitive disabilities, requires a separate theoretical treatment. He was right that it requires separate treatment. He did not finish that treatment, and the gap he identified is the gap that Arthur falls through in every city that has deployed Rawlsian-adjacent policy systems to govern its homelessness programs. The programs are designed to be fair to participants. Arthur is not a participant.

Hobbes's version of the problem is more brutal and more honest. In *Leviathan*, those who cannot protect themselves are not protected by the social compact because they have nothing to offer the compact in exchange for its protections. They exist in a permanent state of nature relative to the rest of society. The sovereign has no obligation to them derived from contract. Whatever obligations the sovereign might have are moral obligations that exist prior to and independent of the contract itself. Hobbes has no developed account of those prior obligations, which is why his theory produces a state that can legitimately ignore Arthur, as long as it does not commit harm against him.

The gap is real and must be acknowledged rather than papered over. Social contract theory, in its standard formulations, does not generate obligations toward Arthur. Nussbaum, in *Creating Capabilities*, is clear about this, noting that her capabilities approach was developed partly to address the population that contract theory excludes. The capabilities approach does not derive obligation from a hypothetical agreement. It derives obligation from the observable fact that particular capabilities are constitutive of a genuinely human life, and that a just society has an affirmative duty to bring every person above the threshold of those capabilities. This derivation does not require Arthur's participation. It requires only that he is a human being, which is a fact about him that the street has not changed.

The political implication is that the state's obligation to Arthur does not rest on the same foundation as its obligation to taxpaying, voting, contracting citizens. It rests on a prior foundation, which is the natural law obligation to protect the conditions required for any human being to function as a human being, prior to and independent of any contractual relationship. This is not a novel claim in Western political philosophy. Cicero established it in *De Re Publica*. The Stoics grounded it in the common logos that all rational beings share. Grotius developed it into the foundational principle of international law, arguing that particular obligations hold between persons independent of any treaty, compact, or mutual agreement, because the nature of persons generates them.

What is novel is applying this pre-contractual obligation to the particular pop-

a functioning prefrontal cortex, there is no deliberation occurring. There is reflex, survival response, craving, and threat reaction. These are real experiences. They are not choices in the sense that Mill's harm principle requires in order to apply.

The person in dorsal-vagal shutdown, which is the physiological state where the nervous system has suspended voluntary activity because the perceived threat is total and inescapable, is not exercising liberty when waving off an outreach worker. Their nervous system is executing a survival reflex that evolved to protect organisms from predators. Stephen Porges's polyvagal research establishes this mechanism in clinical detail. The practical implication is that "respecting the refusal" of a person in shutdown is not a defense of liberty. It is a decision to treat a biological defense response as a considered preference and walk away from someone who cannot advocate for themselves in any meaningful sense at that moment.

Mill wrote for a population of intact rational agents. His harm principle, which asserts that the only legitimate basis for state coercion is preventing harm to others, does not address the population whose capacity for rational agency has been physically destroyed by environmental conditions outside their control. Martha Nussbaum's capabilities approach provides the model Mill's does not. Nussbaum argues that a just society has an obligation to bring every person above a threshold of the capabilities required for a human life. Those capabilities include bodily health, practical reason, and the emotional foundations of social engagement. A person below this threshold is not exercising freedom when they remain below it. They are failing to achieve the conditions that freedom requires. Restoring those conditions is not a violation of their autonomy. It is the precondition for their autonomy to exist in a form that matters morally.

Gerald Dworkin's analysis of autonomy and paternalism establishes the justification for intervention that this argument requires. Dworkin distinguishes between hard and soft paternalism. Hard paternalism overrides the genuine preferences of a competent agent for their own good. Soft paternalism intervenes when the choice being "respected" does not reflect the genuine preferences of a competent agent, because the conditions of competence are not present. Compelled care for the person whose prefrontal cortex has been destroyed by street exposure is soft paternalism in Dworkin's sense. It does not override a genuine choice. It responds to the absence of the conditions under which genuine choice is possible.

The argument requires four conditions to hold simultaneously before compelled intervention is legitimate. All four must be present; the absence of any one defeats the justification. First, the neurological destruction of autonomous agency must be verified through clinical assessment, not asserted by an administrator seeking to manage a difficult client. Second, the finding must be re-

Chapter 10: The Legitimacy of Compelled Care

Thomas Szasz spent fifty years arguing that involuntary psychiatric commitment is the therapeutic state's primary instrument of social control, that the elastic definition of mental illness has historically expanded to capture political dissidents, social nonconformists, and inconvenient individuals rather than to treat genuine disease, and that the language of care has functioned as a cover for coercion that a free society should not tolerate. He was right about most of this. Anyone who proposes compelled care without first acknowledging what Szasz documented, including the asylum era, the Soviet use of psychiatry as a political weapon, and the racialized application of conservatorship in California's recent history, is not making an honest argument. This chapter begins with that recognition.

Szasz is right that the therapeutic state expands. He is right that voluntary and involuntary blur within institutions that have incentives to retain clients. He is right that a diagnosis of incapacity has been used to override preferences that were not incapacitated, only inconvenient. The history he cataloged is real and recent enough to be legally actionable in California courts. An argument for compelled care that does not take this history seriously is not an argument that the civil libertarian tradition is obligated to engage. It can be dismissed as naivety dressed as compassion.

Here is the honest argument that takes Szasz seriously and proceeds anyway.

Liberty, in the sense that Mill defined it, representing the right to be left alone and to make choices about one's own life without interference from others, requires a functioning brain. Not because cognitive performance is the criterion for moral worth. This book's central claim is the opposite, namely that dignity precedes function, meaning that a person's claim on moral care is not conditional on the capacity to exercise it. But liberty in Mill's sense, representing the substantive capacity to guide one's own life according to personal values and preferences, requires the neurological substrate of deliberation. Without

ulation that modern liberal states have created through the combination of housing scarcity, inadequate mental health infrastructure, and service systems structured to serve participants rather than to rescue the incapacitated. The traditional natural law systems were not designed for this population, because this population, chronically unsheltered, neurologically impaired by years of street exposure, and classified as non-compliant by the systems nominally responsible for their care, did not exist at the scale it exists now. The obligation is pre-modern. The population it must address is a consequence of modern conditions. The intersection of the two is what this book is about.

Chapter 7: Natural Law Without God

Hugo Grotius wrote, in 1625, a sentence that changed the history of political philosophy. He argued that the law of nations would hold “even if we were to concede, what without the greatest wickedness cannot be conceded, that there is no God.” The Latin phrase, *etiamsi daremus non esse Deum*, has been called the founding claim of secular natural law. What Grotius was asserting is that some moral obligations are grounded in the nature of things, not in divine command, and that you can recognize them without reference to God at all.

This matters for the argument of this book because the natural law tradition is the philosophical model that most naturally supports what this book is claiming, which is that Arthur’s biological condition generates an obligation to intervene that does not depend on his consent, his contract membership, or his cognitive performance, and because that tradition has historically been entangled with theological premises making it inaccessible to secular political discourse. A secular natural law argument is the one that can be heard across the widest range of the political landscape. Here is that argument.

Cicero, writing in *De Re Publica* three centuries before Christianity, grounded law in the rational nature that all human beings share. True law, he wrote, is right reason in agreement with nature, meaning it is universal, unchanging, and binding on all nations and all times. Its source is not a legislature, not a custom, not a divine promulgation. It is the nature of the rational creature itself. Because all human beings share this rational nature, they share in a universal moral community whose obligations do not depend on citizenship, agreement, or institutional membership. The slave and the senator are both members of the same rational community. The obligation to treat them both as ends rather than as instruments follows from their shared participation in reason.

Marcus Aurelius, a practicing Stoic writing four centuries after Cicero, pushed

They make the institution's work manageable and the institution's outcomes predictable, with the result that the person who cannot be reduced to a category falls through the gaps between categories and remains on the street.

The moral question that Arendt's analysis produces asks what the ethical status is of a person who works within this machine and knows what it is producing. Not the executive who designed the incentive structure and not the politician who allocated the funding, but the caseworker who logs the contact, the shelter director who measures the bed count, and the bureaucrat who writes the compliance report. Arendt's answer, derived from Eichmann's case, is that the abdication of moral judgment, representing the choice to follow procedure rather than to think from the perspective of the person the procedure is supposed to serve, is itself a moral act. Thoughtlessness is not a defense. It is the mechanism.

For the people who work in the homelessness services system and are reading this with recognition, this chapter is not an accusation. The individuals within the machine are, with rare exceptions, doing what their institutions reward them for doing, and they entered those institutions because they wanted to help. The indictment is structural. The question is whether structural indictment produces structural change, or whether naming the machine is just another form of moral theater that changes nothing.

The critique that nothing changes no matter what anyone does is historically well-supported and deserves honest engagement rather than optimism. Arendt's own life did not end in triumph. She documented evil; it continued. But she also observed, across her career, that the moment a machine becomes visible, representing the moment when its mechanism is named and its outputs are traced to their causes, something shifts in the moral environment in which it operates. The machine does not disappear. It becomes harder to pretend that the people within it bear no responsibility for what it produces.

Changing the basis of evaluation is the concrete reform that follows from this analysis. An institution judged by outcomes, meaning housing retention at twenty-four months rather than contacts logged, cannot sustain a business model organized around client persistence. An institution judged by the Finnish benchmark of eighty to ninety percent retention cannot present the American forty percent as a reasonable outcome given available resources. The measurement instrument is a moral instrument. What gets measured determines what gets produced. The machine will not reform itself. But a machine operating under a different measurement regime will produce different outputs, because the institutional behavior it rewards will be different. That is not optimism. It is the same engineering logic that John Snow applied to the Broad Street pump. Find the mechanism. Intervene at the right point. The pump handle, in this case, is the performance metric.

this further. The Stoic doctrine of cosmopolitanism, which holds that all rational beings belong to a single world-city whose laws are the laws of reason, generated obligations toward the suffering of strangers. In the *Meditations*, Aurelius returns repeatedly to the theme that what harms the hive harms the bee, meaning that the good of any rational being is the concern of every rational being, not because of a contractual arrangement but because rationality itself is the shared medium through which all of them participate in the universe's ordering principle. The suffering of one diminishes all.

Neither Cicero nor Aurelius grounded this in God. Cicero's cosmic reason is immanent in nature. Aurelius's logos is the rational structure of the cosmos itself, not a personal deity who commands obedience. Grotius, drawing on both, made the secularity clear, stating that the natural law holds whether God exists or not, because it is grounded in the nature of things rather than in divine will.

The biological version of this argument is the one this book needs. Human beings are organisms of a particular kind. That kind has characteristic needs, including sleep, nutrition, physical safety, metabolic stability, and the neurological decompression that follows when these needs are reliably met. These needs are not preferences or cultural constructions. They are biological facts about what kind of organism a human being is. When an environment systematically destroys the capacity to meet these needs, as chronic street exposure does, it destroys the conditions required for the organism to function as the kind of organism it is. The destruction is bad relative to the organism's nature. The obligation to prevent that destruction, and to restore the conditions when destruction has occurred, follows from the nature of the organism, not from God, not from a social contract, not from a rights claim, but from the observable fact of what a human being requires to be a human being.

Philippa Foot, as Chapter 4 established, provides the contemporary philosophical model that closes this argument. Natural goodness is not a property conferred by social membership or divine grace. It is a property of organisms relative to their kind, derivable from observation of what characterizes the life of organisms of that kind when they are living it well. A human being living well is sleeping, eating, connected to others, capable of deliberate action, and oriented toward a future. Arthur under the bridge is none of these things. His condition is bad relative to what he is, and the badness generates prescriptive force, creating an obligation to restore the conditions, without any theological premise in the argument.

The secular natural law argument reaches a policy audience that the theological natural law argument does not, and it reaches it without sacrificing the philosophical rigor that the biological floor claim requires. The obligation to rescue Arthur is not a religious obligation. It is an obligation grounded in what Arthur is, which is a member of the rational animal species whose nature

includes the needs that street exposure destroys and whose good, in Cicero's formulation, is the concern of every other member of that species by virtue of their shared participation in the same kind of life.

corruption, but from the logic of institutional self-preservation. An agency whose budget is justified by the number of clients it serves has a structural disincentive to reduce the number of clients it serves. This is not a cynical observation about human nature. It is a description of how incentive structures shape behavior in any organization, public or private. The homelessness services industry is not exceptional in this regard. It is an ordinary institutional response to a misaligned principal-agent relationship.

Tyler Cowen's diagnosis of American institutional stagnation adds a layer to this picture. Regulatory accumulation, as Cowen documents, produces a kind of civilizational complacency in which the existing arrangement becomes self-reinforcing, meaning that existing providers capture the procurement process, write the compliance standards, and use those standards to block alternatives that would reduce their market share. The homelessness services industry exhibits this pattern with precision. The credentialing requirements for service providers, the HMIS data ownership structures, and the county behavioral health contract vehicles represent quality standards that also function as barriers to entry for models that might produce better outcomes. A proposal for a new institutional architecture faces not just competition from existing providers but a regulatory environment that existing providers have shaped over decades to favor their operational models.

The revenue machine is the name for this dynamic when it operates at the scale of a twenty-four-billion-dollar state program. The machine does not conspire. It does not hold meetings to decide how to perpetuate homelessness. It operates through the cumulative effect of thousands of ordinary institutional decisions, each reasonable in isolation, each reinforcing the conditions that justify the machine's continued existence. The outreach worker who logs a contact rather than a housing placement is following protocol. The program director who measures shelter bed occupancy rather than housing retention is following the contract's performance metrics. The county administrator who funds the established provider over the novel model is following procurement policy. No one is lying. No one is breaking rules. The machine produces its output through the aggregate of individually defensible acts.

James Scott's analysis of high-modernist institutional schemes identifies a related failure mode. Large-scale institutions, Scott argues, systematically fail when they attempt to impose a simplified, legible order on complex local realities whose irreducible detail they cannot perceive or process. The local knowledge that makes a community work, including who watches whose gear, who has a dog named Ranger, and who had a falling out with someone three pods over, is the knowledge that a large institution cannot hold. The institution replaces this knowledge with categories, such as homeless individual, chronically homeless individual, high-acuity client, and non-compliant resident. The categories are operationally necessary and epistemically destructive.

Chapter 9: Institutional Capture and Moral Responsibility

Hannah Arendt did not write about the Los Angeles homeless services industry. She wrote about the trial of Adolf Eichmann, the bureaucrat who coordinated the logistics of mass murder and who, in the dock, displayed no malice, no ideology, and no apparent awareness that he had done anything other than his job. Arendt called this the banality of evil, by which she meant that ordinary institutional behavior, executed without moral reflection by ordinary people following ordinary procedures, can produce catastrophic outcomes that no individual within the system intends or acknowledges. You do not need villains to generate atrocity. You need incentive structures, division of responsibility, and the professional norm of not looking too hard at what the system is producing.

California's homelessness services apparatus does not produce atrocity in Arendt's sense. It produces a different kind of outcome that shares the same mechanism. Thousands of people work within it every day with genuine intention to help. They are case managers, outreach workers, shelter operators, county administrators, and grant writers. They care about the population they serve. They also operate within an incentive structure that rewards activity over outcomes, measures contacts over stability, and allocates funding based on the number of individuals processed rather than the number of individuals housed. Within that structure, the system works exactly as designed. Arthur remains on the street. The reports are filed. No one is responsible.

James Buchanan and Gordon Tullock described this mechanism in 1962, before the modern homelessness industry existed. Their analysis of bureaucratic behavior identified a predictable pattern, whereby public agencies expand their budgets, protect their jurisdictions, and embed their operational models into the regulatory standards that new entrants must satisfy. Not from

Chapter 8: The Hierarchy of Obligation

Arthur walked into the Phase Zero intake center and received a keycard to a hard-sided room. He locked the door behind him, lay down on the cot, and stared at the ceiling. For the first time in five years, he had a defensible perimeter. Over the next ninety minutes, his resting heart rate dropped from one hundred and ten beats per minute to eighty-five. His adrenal glands reduced their cortisol production. His autonomic nervous system began the slow shift from sympathetic overdrive to parasympathetic recovery. The metabolic stabilization had begun.

Some obligations precede others. This logical sequence dictates that foundational conditions must exist before higher-order functions become possible. Demanding complex cognitive performance before establishing biological stability constitutes a category error. This error produced the failure California documented when the state spent twenty-four billion dollars on homelessness interventions while the unsheltered population continued to grow.

Amartya Sen's development model establishes this logical structure. Sen demonstrates that human development requires expanding capabilities, which represent the real freedoms that people value and the physical ability to exercise them. These capabilities form a rigid hierarchy. Bodily health and physical integrity operate as the primary tier. Practical reason, representing the capacity to deliberate, plan, and form a conception of the good, builds upon that foundation. Affiliation, community participation, and control over the social environment build upon practical reason. Each capability serves as the prerequisite for the ones above it.

During his years under the bridge, Arthur lost access to the primary tier. The cold, malnutrition, and accumulated stress of street exposure degraded his bodily health. Every municipal sweep operation that destroyed his possessions and displaced his encampment violated his physical integrity. Without the primary tier, practical reason became unavailable to him. Without practi-

cal reason, the affiliation programming, vocational training, and case management sessions offered by the municipal system amounted to third-tier demands presented to an organism stripped to the first tier.

This hierarchy inversion defines the failure mode of the American housing system. The system demands participation in higher-tier programs as a condition of access to basic resources. To receive shelter, an individual must sign a behavior contract, which requires practical reason. To receive case management, they must attend scheduled appointments, which requires the executive function to track time. To access supportive housing, they must demonstrate housing readiness, which requires the cognitive architecture that street exposure progressively destroys. These eligibility requirements function as tier-three demands imposed on a damaged nervous system. They filter out the most vulnerable populations who require immediate biological rescue.

Phase Zero within the Material Dignity Infrastructure, abbreviated as MDI, corrects this inversion. This clinical-housing model structures intervention through three non-discretionary stages, beginning with Metabolic Stabilization. Phase Zero establishes the biological floor unconditionally. It provides an individual locked room, continuous nutrition, medical stabilization, and a ninety-day decompression period. The facility imposes zero compliance requirements and requires zero behavior contracts. During this decompression window, sleep architecture restores, systemic inflammation drops, and the prefrontal neural networks begin to recover. The system stabilizes the organism first. Institutional assessment occurs only after the biological conditions for valid cognitive evaluation have been met.

The transition from Phase Zero to the relational layer represents the second level of the hierarchy. Once the biological floor exists, the relational environment determines whether the biological stabilization converts into long-term recovery. This progression relies on a relational ontological model. A human being becomes a person through social recognition. The isolated organism requires a community to construct an identity. The Finnish housing model designed for this layer while the American system abandoned it. The housing advisor, the pod steward, the daily kitchen encounter, and the community council constitute the second tier of a hierarchical architecture. They provide the relational scaffolding required to rebuild the self. This tier becomes available to the organism only because the first tier has secured the physical perimeter.

The third tier encompasses identity reconstruction, employment, education, and civic participation. This tier becomes accessible after the second tier has generated the relational ground where identity capital accumulates. Klodnick and Samuels's 2020 longitudinal research establishes the first year post-housing as the critical window for this accumulation. A person who spends ninety days in biological decompression and six months in a structured re-

lational environment arrives at this window possessing the neurological capacity to engage vocational programming and the tenancy bridge guarantee. Conversely, a person housed without the first two tiers arrives at the same window with a nervous system calibrated to threat. The vocational programming fails because the organism lacks the capacity to engage it.

This biological and relational progression maps to the CalAIM service billing tranches. The initial recuperative care rate of twenty-one thousand nine hundred dollars per unit stabilizes the biological floor during Phase Zero decompression. Once the individual transitions, the tenancy sustaining code of fourteen thousand four hundred dollars and the housing navigation code of eight thousand four hundred dollars finance the relational layer. The stabilized blended average of eighteen thousand two hundred dollars per unit sustains the full hierarchy of care. The operational sequence dictates the fiscal sustainability.

Sen's insight, transposed into the MDI architectural logic, produces a single diagnostic principle. The sequence determines the outcome. A system that provides resources out of sequence produces expensive failure and wrongly attributes that failure to the population's pathology rather than the institutional sequence error. The hierarchy of obligation functions as the engineering specification for human survival.
